

The State, Citizenship and Law

The state is the most important political institution of the social life. The state had emerged to unify all citizens and to resolve their problems as well as to ensure their welfare. In a certain level of the evolving process, the state emerged from the society. In the ancient and middle ages, the state was considered an organization formed by the God. The modern political thinkers explain the state as an organization 'to provide common welfare' and 'indispensable for the independence of the people and flourishing their personality'. The state is for the citizens. The state has to discharge many responsibilities to ensure citizens' peace and happiness. Some of these works are mandatory and some of the works are optional. Besides, the citizens also have some duties and responsibilities to the state. On the other hand, rules and regulations are necessary to ensure security of the citizens, and solve the existing problems of the society, In this chapter we will learn about the state, citizen and law.

After reading this chapter, we will be able to —

- explain the concept of state;
- explain the works of the state;
- explain the concept of citizen;
- explain the duties and responsibilities to the state as a citizen of Bangladesh;
- encourage ourselves to discharge responsibilities as a citizen;
- explain the concept of law;
- explain the sources of law;
- explain the necessities of laws for good governance;

The Concept of the State

Every human being lives in a certain state. A state never evolves suddenly. The ancient people would live in groups. The state emerged as time changed. People make the state. Every citizen of the state has to obey the rules and regulations of the state. The people of the states are called citizens. The state discharges many duties for the citizens so that they can live in peace and harmony.

The political scientists and political theorists described the state in various ways. According to Aristotle, 'The state is a union of families and villages having for each end and perfect and self-sufficing life.' According to R. M. MacIver, 'The state is an association which acting through law as promulgated by a government endowed to this end with coercive power maintaining within a community territorially demarcated the universal external condition of social order,' Professor Garner gave the most complete and clear definition of state. According to him,

'The state is a community of person more or less numerous permanenently occupying a definite portion of territory independent (or nearly so) of which the great body of inhabitants render habitual obedience.'

So we can say that the state is a society based on a certain territory which has organized government and citizens, and have sovereign power upon all organizations in a specific geographical area.

The Basic Elements of the State

If we analyse the concept of state, we will notice four essential elements of it: the people, the specific geographical territory, the government, and the sovereignty. Each state consists of these four elements.

The People: : The primary element of the state is its people. People means the people organized politically. People are necessary to form a state. The state evolved from the intention of people to be united and to build up relationship among them. However, there is no such pre-requisite on the number of people to form a state. Politically the number of people of a state can be some crores. Even it can be few thousand, for example, the people of China and India are more than one hundred crore. On the other hand, small countries like San Marino and Monaco have 33,733 and 38,956 respectively (according to 2023 report, WB).

The Specific Geographical Territory: The specific geographical territory is the second mandatory element of a state. Every state is surrounded by a specific geographical border. The territory also includes land, sea and air. The sovereignty over the geographical territory is essential for the people of the

state to live in that land. To uphold the right upon a specific territory, the citizens united launch the nationalist movement, organize agitation and fight or take steps according to the

Individual work: Which one is the most important element of the Bangladesh state and why?

people of the state to live in that land. To uphold the right upon a specific territory, the citizens unitedly launch the nationalist movement, organize agitation and fight or take steps according to the constitution. Every state establishes a security system based on its border. The geographical land can be big or small, for example, Russia is a huge country and Brunei Darussalam and Switzerland are very small countries. The territory of Bangladesh emerged as an independent state in the world map after a Liberation War in 1971. Sometimes, the specific geographical area of a state can be formed with some small islands, for example, Japan, Malaysia and Indonesia.

The Government: The third essential element of a state is the Government. The

control over a specific land is established after the formation of the government. The partial formation of the state is complete. There are three divisions for running of the government – the law, the administrative and the judiciary. Usually in a democratic system, the people form a government through the general election. The system of government can be different in different states. The Government is meant by everyone of the administration who participates directly or indirectly in running the state, i.e. the power of the state is administered by the government. According to Professor Garner, 'If we consider state as a body of a life, government is its brain'.

The Sovereignty: The principal element to form a government is the sovereignty. The meaning of the word 'sovereignty' is the highest and absolute power. The formation of the state becomes complete when the sovereignty is ensured. This power distinguishes the state from the other organizations. The sovereignty is a characteristic of the state which is not bound to any other legally except its own will. In each social system, there will be a central authority which will execute the supreme power. And this power is the sovereign power. The ideal of sovereignty is the law. Everybody is bound to obey the law or the ideal of sovereignty. The sovereign power has both the inner and outer entity. By exercising the inner power, the state establishes its supremacy over all its citizens and organizations. No authority can exist over this sovereign power. The meaning of outer sovereignty is that the state will be free from the control and influence of outside power in the international arena. If any state has citizens, specific territory and government, but it lacks the sovereignty, will not be recognized as a state. As long as a state exists, the sovereignty will also prevail. The sovereignty will not be damaged by the change of the government.

So the people, the specific territory, the government and the sovereignty are the four components that constitute the state. A state will not be formed for lack of any of these components.

The Functions of the State

We need to know that what a state does or can as a political institution. That is we will learn what service a state can provide to its citizen and what its capacity is. We know that a state emerges from the necessity of the people, and it plays the role of ensuring, overall welfare of the human beings. According to the political analysts, the state discharges two types of duties– controlling and ensuring welfare. Based on these two types of roles, the responsibilities of the modern state are divided into two parts such as the mandatory or prime activities, and the welfare or optional activities.

The Mandatory or Prime Activities: The responsibilities discharged by the state to protect the entity of the state, the independence and the sovereignty, and to preserve the rights of the people living in the territory are called the mandatory or prime activities of the state. The mandatory job of the government are described below:

R.M. MacIver in his book *The Modern State* says, 'Maintaining law and order situation is the prime work or responsibility of a state'. The organization called state has been evolved to ensure security of life and property of the citizen, and protect the freedom of the individuals. The key responsibilities of a state are to make the people abide by the laws, punish the offenders who break the peace and tranquility of the society, and maintain overall peace and harmony of the country. The state establishes political authority in local, regional and national levels to achieve this objectives. The state establishes the police and the para military forces to maintain the law and order situation. The Police, RAB, Ansar, Village Defense Party, etc. are working to maintain law and order in Bangladesh.

The Protection of national security, independence and sovereignty is another mandatory responsibility of the state. Establishment of a powerful defense force is another mandatory responsibility of the state to protect the country from the foreign intervention and to maintain the geographical integrity. In modern age, each of the independent states builds up powerful defense forces. The capability and modernisation of the defense force give a country special facilities in the international fields, for example, the USA or the UK has a leadership role in the world due to the power of their defense forces. The defense force is established with the army, navy and air forces.

Introducing the country in the foreign field, establishing the rights upon the resources within the territory, establishing diplomatic, relationship with other countries, signing various treaties and conventions, establishing regional courts and commercial market in foreign countries and extending them, ensuring security of the citizens residing in foreign country and providing them with various services are the mandatory responsibilities of the foreign offices of any state.

The enactment of laws and its implementation, and ensuring justice are the fundamental duties of a state. The laws are enacted by the parliament. The establishment of the Supreme Court, High Court, Judge Court and other courts to ensure justice are the mandatory work of the state.

Every state establishes an administrative structure to accomplish the routine works, control and run the state smoothly. In this structure, recruiting staff and officials, distributing their works, providing instructions, supervising and directing are the mandatory work of the state.

The appropriate management of the finance and resources, and the collection of funds and proper distribution are the other key responsibilities of the government. A huge amount of money is required to run the various activities of the government. The collection of this amount from various resources is the mandatory work of a state. Imposing tax and revenue on various goods, business organizations, individuals, traders, and collecting as well as sensible utilization of the money are the other important works of the state. Formulating budget, introducing currency, facilitating investment of money, determining unit of measurement, fixing the price for essential commodities are other important duties of the state. Managing economy, controlling inflation rate, controlling price of essential commodities are the other key responsibilities of a state.

The Welfare or Optional Responsibilities: : Almost all the countries of the world demand that they are welfare states. The political theorists now opine that the role of a state should not be confined to protecting law and order, and collecting revenue. The state should play roles for the overall development of the society and improve moral, social, cultural and economic conditions of the citizen and ensure their welfare. These welfare and development works are the optional and less important work for a state. The more the state develops the economy, the more its optional works extend.

Group work: Prepare a table mentioning the works the state.

The most important work of the state is to educate its people. The educated citizens are the most valuable resources of the state. The educated persons are aware of the citizen's rights, duties and responsibilities and are encouraged to be patriotic. The state gives much importance to the development of education, and extends the facilities of educations to its citizen's door steps. The Government introduces compulsory primary education, organizes adult education with emphasising women education, and initiates various programmes for eradicating illiteracy.

The state also plays a significant social role for healthcare of the citizens and for wiping out various disparity and bad customs existed in the society. The state also establishes and runs hospitals, free medical centres, mother and child healthcare centre, family planning centre, temporary health camp around the country for ensuring healthcare services for its citizen and for arranging treatment facilities for the patients (nominal or free of charge). Besides, the state also provides services to ensure healthcare for its people, arranges pure drinking water, sewerage system, disease prevention measures and immunization programme. Besides, the state also plays a vital role to eradicate dowry and racism, tribalism, prevent child marriage, and ensure gender equality, etc.

By ensuring the constant supply of essential commodities such as rice, pulses, flour, coarse flour, sugar, etc. is an important function of the state the government should consolidate food security, through the modernization of agricultural systems, and providing subsidy to the agriculture, fertilizer, seeds, pesticide, irrigation system, and increasing production, food storing become important responsibilities of the state. Because of the increasing population, demand for food has been increased. As a result the state has to give more attention to the food security compared to the previous time. Bangladesh has gained encouraging success in this sector.

The economic development of any state depends on the industrialization and improvement of trade and commerce. Establishing new industries, -providing logistic support and loan to the entrepreneurs for setting up big industries, establishing industrial zone, expanding trade and commerce, creating markets for products and extending support to boost up export are the important works of a state. Every state should focus how to be self-sufficient rather than depending on import. For this, the state has to emphasize on the scientific and technological research. Besides, setting up and running industries under the supervision of the state, it should create employment opportunities for a good number of people, and it's another optional work of the state.

The infrastructural development of a country such as constructing roads, bridges and culverts, establishing, railways, waterways and air communication systems, ensuring post, telegraph and telecommunication services and connecting with modern mode of communication are some optional works of the state. A huge revolution in communication system has been taken place in the present world. The inter connectivity has been increased in this world due to the use of the Internet, networking and frequency. The technological improvement in the field of domestic and international communication are considered as the important optional works of a state. The establishment of appropriate transportation and communication system are essential for the development of a state.

To maintain the harmony and unity among the people, projecting the national tradition and developing nationalism by the local culture, music and song, maintaining local diversification, conserving local crafts, establishing museum, organizing cultural programmes, initiating cultural exchange are the important optional work of the state. Setting up stages for performance, establishment of playgrounds, parks and gardens for recreations are also included among the responsibilities of the state.

The most important optional work of the government is to defend the independence and rights of the people. The state will ensure freedom of speech, freedom of movement of its people and assist them in participating in the political activities. In this regard, it will organize free, fair and neutral election, create an

environment so that people can involve in politics, ensure freedom of establishment of organization and political parties, coordinate among the conflicting interests of the people, preserve interest of minority, protect corruption, establish the right of the different ethnic communities, ensure shelter for the refugees, etc. These are the optional political works of the state. The modern states take various initiatives to ensure the social security. Providing financial and other assistance to the poor, widows, orphans and disabled people residing in the state, providing allowance to the unemployed, giving pension and grants to the elderly people, etc. are included as the welfare activities of the state.

Running the huge work force and control them are the optional works of the state. Upholding the rights of the labours, making labour policy, fixing up minimum wage, determining working hours, creating working environment, providing bonus, insurance and pension, creating employment, developing skilled workers by providing training, appointing labour officer for defending the rights of the workers abroad are important works of the state.

Besides, the state initiates various development and welfare works, for example, the development of agriculture and irrigation system, the afforestation programme, fight against the natural disaster, assistance and rehabilitation of the disaster victims, protecting the people from famine and death by the diseases, creating facilities for the citizens, supplying power and energy, the appropriate management of natural resources, the urbanization, the rural development, preventing the growth of black market, resisting women and child trafficking, creating awareness, etc. are the works done by the state.

The state is a huge organization. It has to face various new challenges every day. However, providing overall welfare to the people are the main objectives of a state. As per demand of the people, the area of optional works of a state is increasing day by day.

The Concept of Citizen

One of the main pre-requisite to form a state is the mass people. When a state appeared absolutely, the mass people of this state are considered as citizens. The relationship between the state and its citizen are very close. The success and failure of a state depends on the sense of duty and responsibility of the citizens. So we have to be aware of the duties and responsibilities of the citizen, and to know how to be a good citizen. The word 'citizen' derived from the Latin word 'civics'. Usually, by the word citizen it is meant the inhabitants who

reside in the city. It was earlier believed that those directly involved in the administration were regarded as the citizen. Aristotle, the father of the political science also described citizen in his definition saying, 'Who participates in the administration directly and represents in the city state is called Citizen.' Aristotle, in his concept, did not include most of the people because as per his opinion, most of them are not capable enough and they have not enough time to do so. In the Greek city state concept, women and slaves were not regarded as a citizen and they could not participate in the state affairs.

Now the national state has been evolved instead of city state. The modern state is very big and its population is also big and everybody enjoys civic facilities directly and indirectly. But it is not possible to accommodate this huge number of people in the administration. So, while awarding citizenship to anybody, loyalty to the state and the political as well as other facilities he enjoys are regarded as a parameter instead of participating in the government. Modern political scientist of Britain Harold J Laski said in his definition for citizen, 'The persons who take facilities of the state and remain loyal to that state are called Citizen'. Professor Gettel said, 'Citizen is the member of that political society who is committed to discharge duties for that society and he is entitled to enjoy all facilities.

The citizen is therefore the person who is bound to discharge duties and responsibilities of the state on the other hand enjoy all civic and political rights. In broader sense, citizen is the person who live permanently in that state and remain loyal to the law, constitution and other orders of the states. Citizens play the roles in the welfare of the state by their own works, and enjoy all the social, economic and political rights distributed by the state. As a citizen, everyone is equal all men, women irrespective to caste and creed are entitled to be a citizen.

The Duties and Responsibilities of a Citizen to the State

As the state provides various facilities and rights to the citizens, they have to discharge some duties and responsibilities as well to the state. Duties and responsibilities are interrelated and inter-dependent to each other. The most significant duties and responsibilities of the citizens are described below.

The prime responsibility of the citizen is to be loyal to state, i. e. to obey the instructions of the state. The citizen has to remain vigilant and ready for supreme sacrifice for the security, integrated territory, independence and sovereignty of the state. The citizens are responsible for abiding by the existing law and constitution and showing respect to the law. If anyone breaks the law, it creates indiscipline in the society. It impedes normal life. So every citizen has to obey the law for maintaining peaceful life and discipline.

Enfranchisement with honesty and acumen is the sacred duty and responsibility of a citizen. So qualified and eligible candidates can be elected as peoples' representatives. Everyone

Group work: Prepare a list of the duties and responsibilities of the citizens to the state.

should abstain from voting unqualified and corrupted persons.

The prime sources of the state's income are tax and revenue provided by the citizen. A huge amount of money is needed to run the administration as well as the defense to initiate various development works. The citizens should cooperate the state providing taxes on regular basis.

The responsibility of the citizen is to perform the assigned duty on him by the state. Any work initiated by the government is the work of the citizen. The success and development of a government depends on the morality, concentration and devotion the of citizens of the state.

Every child is the citizen of the state. Parents work as a guardian of the child: Thus immunization, keeping good health and sending the children to the school in right time are the responsibilities of the parents. As a result the child will be a decent citizen receiving good education and will contribute to the family, society and the state.

It is the duty of every citizen to respect the elderly, to treat women with dignity, and to have a loving attitude towards children. It is the primary duty of all citizens to be attentive to the fact that the life, honor, and property of another citizen are not harmed by the behavior of one citizen.

Every citizen should have patriotic zeal. The responsibility of the citizens is to wish the state all the success and feel proud of their own culture. They should remember the National Anthem, the national history and the contribution of the national heroes and scholars.

Every citizen should have high tolerance level for others. The national unity is achievable through respect for different cultures difference of opinion. Everyone should believe that beauty remains inherent in diversity.

Every citizen should protest against the corruption and injustice. It is a moral obligation of a citizen to protest against the unlawful act of a person, organization and even the state. But one should not take the law in one's own hand. In this way, a society of good governance and free of corruption would be established.

The concept of Law

The laws usually in a social system are some necessary written rules and regulations. Most of the inhabitants obey these rules to control the behavior of the people as well as maintain peace and harmony of the society. Therefore, law is a combination of various kinds of rules, regulation, custom, practice, rituals and

codes. The rules and bindings obeyed by the people in social life are called social law. In the state structure, the laws enacted in accordance with the various national policies to control the behaviours of the people and to protect various problems of the society, the statutory obligations and instructions unanimously promulgated by the government are considered as the state laws. Various political thinkers and law experts provided the definition of law. T.H. Green said, 'Laws are rights and bindings imposed by the states'. According to professor Holland, 'A law is, general rule of external action enforced by sovereign political authority'. Woodrow Wilson gave a suitable definition of law. He said, 'Law is that portion of the established habit and thought of mankind which has gained distinct and formal recognition in the shape of uniform rules backed by the authority and power of the government'. So, law is the combination of specific rules recognised by the society and government for betterment of the social welfare of the people.

The Characteristic of Law

From the above definitions, some of the characteristics of law are noticed, and those are as follows:

1. Law controls the external behaviour and work of people.
2. Law is for all because it is equally applicable to everyone in a state.
3. Law is one kind of order or prohibition which everyone has to obey. The person who disobeys the law faces punishment.
4. Law is recognized and imposed by the authority of the state.
5. Everyone obeys the customs and regulations of the society.

The Sources of Law

There are various sources of law. Political Scientist Holland mentioned 6 main sources of law. Those are: 1. The Custom, 2. The Religion, 3. The Judgment of Court, 4. The Scientific discussion, 5. The Sense of Justice and 6. The Parliament.

1. The Custom: The custom is the ancient source of law. The social customs are habits, thoughts, behaviour, regulations, etc. that are existed in the society. The impact of these social customs is so strong that conflict and revolution can happen if those are violated. In course of time, these customs are recognized by the government and become law, for example, most of the laws in Britain came into being from the customs.

2. The Religion: The impact of religion on human being is immense. Since the ancient period, the people are following divine laws. So the religion, regulations of religion, the scriptures are the important sources of law. As the sense of justice-injustice, vice-virtue, etc. was recognised by the religion, the influences of religion were prevalent in the politics of the ancient and the middle age. In the religion based state, religious norms are considered as a state law. The laws of the Islamic state are based on the Holy Quran and the laws of the Shariah. The Hindu laws also principally based on the scriptures such as the Vedas, the Geeta and the

Ramayana. In this modern world, the state laws are enacted based on religious norms too. For the marriage and inheritance laws, the Muslim and Hindu community depend on their respective religious rituals and state laws. One of the main teachings of all religions is to treat all people with dignity, regardless of religion or caste.

3. The Precedence of Court: The verdict of judges or the judgment from the judiciary are the sources of the law. If any judge cannot justify any case using the existing law, he can resolve it using his insight, acumen and wisdom by providing new explanation of the existing law, which can be used as the precedence and may consider as law in future. So the verdicts of judges are the sources of the law too.

4. The Scientific Discussion: The scientific discussion of the lawyers, their books on laws may be regarded as the sources of law. The state has an idea of the laws from the explanation, evaluation, and discussion, etc. of the eminent lawyers. The opinions of the British lawyers Coke, Blackstone, American lawyer Kent, Muslim scholar and jurist Imam Abu Hanifa were regarded as law.

5. The Sense of Justice: When a justice fails to resolve any case either by using the existing law or for the absense of relating law, he can provide his verdict by using social sense of justice. The law derived from the sense of justice may get a full status of law. Thus sense of justice and fairness can be a source of law.

6. The Parliament: In the modern age, the Parliament is the main source of law. There is parliament or assembly in every democratic state. At this parliament, with the view to upholding the interest of the citizens of the state, necessary laws are enacted and amended. Besides, the constitution of the state, the decree passed by the head of the state, the international treaty, the ratification of international law and convention are considered as sources of law.

The Necessity of Law for Good Governance

The necessity of law is very important for good governance. If law and order prevail in a state, every citizen can enjoy freedom and benefits provided by the government. Nobody can harm the rights of others. Usually, the rule of law expresses two concepts : (a). The supremacy of law, (b). equality of everyone to the law.

If the supremacy of law prevails, the government cannot be autocratic and usually cannot abuse power. Arresting any one without any crime or confiscating and punishing any one without trial are the contrary to the rule of law. The supremacy of law is the protection of freedom of the citizen. Nobody can interfere in other's affairs if the supremacy of law prevails in the society. The government does not

dare to interfere in the freedom of any one's life without any logic. The meaning of equality in the eye of law means everyone irrespective of religion, cast, creed, color, community or of being rich or poor is same. Nobody will be entitled to have additional privileges. The same law is applicable to all. The freedom of life hampered in the state, when rules of law do not exist. The law enforcing agency usually harass the citizen arresting them without any legal reason for the absence of the rules of law. The Rules of law cannot prevail if freedom of judiciary and democratic environment do not exist.

Individual work: Why is the rule of law mandatory for Bangladesh? Mention the reasons.

Group Work: 'Citizen awareness is key to improving law and order'-organize debate.

Exercise

Multiple Choice Questions

1. According to MacIver, what is the main function of the state?
 - a. Generating employment
 - b. Building roads
 - c. Issuing currency
 - d. Maintaining law and order
2. The responsibility of a citizen is-
 - a. Providing public safety
 - b. Proper management of industries
 - c. Voting with discretion
 - d. Providing shelter to refugees
3. The characteristics of law are-
 - i. Regulating external human behavior
 - ii. Protecting everyone's rights
 - iii. Providing punishment for lawbreakers

which of the following is correct?

- a. i and ii
- b. i and iii
- c. ii and iii
- d. i, ii and iii

Read the following passage and answer question 4.

On March 11, 2025, former Philippine President Rodrigo Duterte was arrested. It was alleged that he carried out extrajudicial killings during his presidency from 2016 to 2022.

4. The incident of Rodrigo Duterte reflects which characteristic of law?

- i. Universality of law
- ii. Everyone is equal in the eyes of the law
- iii. No one is above the law

Which of the following is correct?

- a. i and ii
- b. i and iii
- c. ii and iii
- d. i, ii and iii

Creative Questions

1. Mr. Mobarak Hossain, an elected Public Representative of 'A' state, participates in enacting laws for labor policy, increasing old-age allowances, and pensions. The government of 'A' state establishes two new hospitals, distributes free books to students, and enacts laws to prevent child marriage.

- a. What is sovereignty?
- b. Explain the concept of 'citizenship'.
- c. Explain what kind of work of the state is the enactment of labor policy by Mr. Mobarak Hossain.
- d. Can 'A' state be called a welfare state based on the passage? Justify your answer.

Short Answer Questions

- 1. 'The state is the most important political institution in social life.' Explain.
- 2. What is the primary element of state formation? Explain.
- 3. Explain the necessity of law for good governance.
- 4. What is a welfare state?